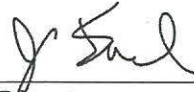


FIRST ENDORSEMENT

Executive Director, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, February 6, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27169 against Police Officer Jose Gonzalez, Tax Registry No. 959666. The case was conferenced on January 24, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of Command Discipline Schedule (B), forfeiture of TEN (10) vacation days.



Executive Director
New York City Civilian Complaint Review Board



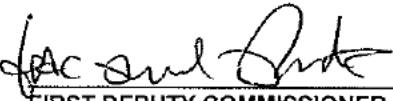


DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27169
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, GONZALEZ	FIRST JOSE	M.I.	COMMAND 028 PRECINCT
SHIELD NO. 19371	TAX REGISTRY NO. 959666	SOCIAL SECURITY NO.	DATE APPOINTED 10/07/2015	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Jose Gonzalez, on or about June 26, 2021, at approximately 1030, while assigned to 046 PCT and on duty, in the vicinity of § 87(2)(b), Bronx County, abused his authority as a member of the New York City Police Department, in that he interfered with § 87(2)(b) use of a recording device by instructing § 87(2)(b) to put his recording device away without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER

5/5/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☐ Approved
☒ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

6/22/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

June 13, 2023

Re: CCRB Case No. 202103843 (Incident Date: June 26, 2021) involving Police Officer Jose Gonzalez, Tax No. 959666 (DADS No. 2022-27169)

Dear Mr. Darche:

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty settlement regarding the disciplinary matter involving Police Officer Jose Gonzalez and has determined that Police Officer Gonzalez's statement does not warrant an imposition of a disciplinary penalty.

Police Officer Gonzalez arrived at a scene of a robbery where he was met by an agitated complainant. Due to a language barrier, and his agitated state, the complainant had a difficult time in explaining to Police Officer Gonzalez what had transpired during the robbery. Additionally, the complainant was holding his cellphone and seemed more focused on recording the robbery suspect, who was present on the scene, rather than on describing what took place earlier.

Police Officer Gonzalez, in an attempt to have the complainant focus on explaining how the robbery occurred rather than on recording the robbery suspect, stated to the complainant that the complainant should "calm down, put the camera off." This statement, when viewed in the context of the totality of the circumstances captured by Police Officer Gonzalez's Body-Worn Camera, was made in order to have the complainant address the officer and explain the events that had transpired. The statement was not made in order to prevent the complainant from recording the interaction between Police Officer Gonzalez and the complainant.

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Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and Police Officer Gonzalez will receive no disciplinary action.

Yours truly,

A handwritten signature in black ink, appearing to be 'LS' followed by a long horizontal stroke.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Stuart London, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 21, 2023

The Honorable Keechant L. Sewell
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Jose Gonzalez
Disciplinary Case No.: 2022-27169

Dear Commissioner Sewell:

I am writing in response to the letter from Inspector Lourdes Soto, dated June 13, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the charges and specifications in this matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Inspector Soto’s notification.

Inspector Soto states that after reviewing the recommended penalty settlement the imposition of disciplinary penalty is not appropriate. The misconduct here is that Police Officer Gonzalez interfered with § 87(2)(b) use of a recording device by instructing § 87(2)(b) to put his recording device away. CCRB disagrees with this determination for the following reasons:

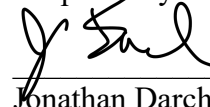
Police Officer Gonzalez assumed responsibility for intentionally interfering with § 87(2)(b) recording device. According to § 87(2)(b) the officers failed to heed his words, prompting him to retrieve his cellphone and lawfully commence recording. § 87(2)(b) recounted that when he directed his phone towards the officers, Police Officer Gonzalez explicitly instructed him to “put the camera down.”

There existed no safety risk, and § 87(2)(b) was not in violation of the law when the incident took place. § 87(2)(b) primary motive behind recording was to maintain personal documentation, as he firmly believed that Police Officer Gonzalez disregarded his concerns. Standing at a distance of approximately one and a half car lengths from the suspect, § 87(2)(b) posed no safety hazard whatsoever. The deliberate statement made by Police Officer Gonzalez was an intentional act aimed at preventing § 87(2)(b) from recording the events that transpired. It is noteworthy that § 87(2)(b)

§ 87(2)(b) wholeheartedly cooperated during the subsequent investigation. Failing to impose disciplinary measures would signify a troubling notion that civilians are prohibited from recording for their own documentation purposes when they find themselves involved in an investigation where trust in the Police Officer is subjectively lacking.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, CCRB requests that the Police Commissioner accept ADCT Adler's endorsement of the plea, put forth by CCRB, in the herein matter of a Schedule B Command Discipline and forfeiture of ten (10) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', is written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: Stuart London, Esq.